



GENERAL CONSTRUCTION PERMIT

Oil and Gas Industry

Hydrocarbon Liquid Loadout

Permit Number GP07 Issuance 4

Final Approval

A purple ink signature of Bradley Eades, P.E., is written over a horizontal line.

July 23, 2025

Bradley Eades, P.E.

Date Issued

Oil and Gas Permitting Section Supervisor

Table of Contents

I. General Permit Applicability	2
II. Operating Terms and Conditions	4
III. Alternative Operating Scenario (AOS)	10
IV. Operating and Maintenance Plan	11
V. Recordkeeping and Reporting.....	16

VI. Additional Requirements for Sources located in an Ozone Non-Attainment Area.....	18
VII. Monitoring Requirments for Facilitlies located in Disproportionately Impacted (DI) Communities.....	18
VIII. General Permit Terms and Administration.....	19

Note: See the Hydrocarbon Liquid Loadout Guidance document (PS Memo 14-02) and the Emission Calculation Manual for further information on definitions, and emission calculation guidelines.

I. General Permit Applicability

I.A. Qualified Sources: The owner or operator of any oil and gas industry (exploration and production (E&P), non-E&P, midstream and downstream) operation that can comply with all of the operating conditions described in Section II of this permit and meet all of the requirements in this Section may register for this general permit. This general permit covers the following:

- I.A.1. Hydrocarbon liquid loading operations, including condensate loading, crude oil loading and dual product loading containing commingled hydrocarbon and produced water.
- I.A.2. Combustion devices, vapor recovery units, vapor balance, or other Division approved control equipment used to reduce emissions from loading operations.
- I.A.3. Equipment as described in Conditions I.A.1 and I.A.2 located at a true minor source or synthetic minor source for Operating Permit (OP), New Source Review (NSR), and Maximum Achievable Control Technology

(MACT) program applicability, except as provided for in I.B., I.C. and I.D. below.

- I.B. Stationary Sources that became subject to Title V Operating Permit requirements or became classified as an existing major stationary source for which a complete GP07 registration request was received by the Division prior to the effective date (January 27, 2020) on which 8-hour Ozone Control Area was re-classified from moderate to serious may continue to operate under this General Permit. 8-hour Ozone Control Area is as defined in Regulation Number 7, Part A, Section II.A.1. (Adopted 12/14/2023, Effective 02/14/2024).
- I.C. Stationary Sources that: a) became subject to Title V Operating Permit requirements or became classified as an existing major stationary source due to the reclassification of the 8-hour Ozone Control Area from serious to severe, and b) for which a complete GP07 registration request was received by the Division prior to the effective date of GP07, Issuance 3 (November 3, 2022), may continue to operate under this General Permit. 8-hour Ozone Control Area is as defined in Regulation Number 7, Part A, Section II.A.1. (Adopted 12/14/2023, Effective 02/14/2024).
- I.D. Stationary Sources that: a) became subject to Title V Operating Permit requirements or became classified as an existing major stationary source for which a GP07 registration request was deemed complete by the Division prior to the effective date (July 24, 2024) on which Northern Weld County was re-classified from moderate to serious may continue to operate under this General Permit. Northern Weld County is as defined in Regulation Number 7, Part A, Section II.A.3. (Adopted 12/14/2023, Effective 02/14/2024).
- I.E. This general permit applies only to the equipment as described in Section I.A. above having uncontrolled actual emissions of Sulfur Oxides (SO_x), Particulate Matter (PM), Particulate Matter 2.5 (PM_{2.5}), and Particulate Matter 10 (PM₁₀) less

than the APEN reporting thresholds for each pollutant in Regulation Number 3, Part A, Section II.D.1.a.

I.F. Excluded Sources: The following sources may not register for this general permit:

- I.F.1. This general permit applies only to the equipment as described in Section I.A above. Other equipment at the same stationary source must be permitted separately as required by Regulation Number 3, Part B.
- I.F.2. Newly constructed or modified existing equipment that is part of a project permit action that is subject to Non-Attainment New Source Review (NA NSR) or Prevention of Significant Deterioration (PSD) permitting under Regulation Number 3, Part D.

II. Operating Terms and Conditions

II.A. Emission Limitations Specific To Sources Registered Under This General Permit

II.A.1. Combined maximum allowable controlled emissions of the following air pollutants from all loading operations that are owned or operated by the same person and co-located at the same stationary source must not exceed the following limitations (Reference: Regulation Number 3, Part B, Section II.A.4.):

II.A.1.a. For facilities located outside the boundaries of an ozone nonattainment area (Regulation Number 7, Part A, Section II.A.1):

Volatile Organic Compounds: 10.0 tons per year

II.A.1.b. For facilities located within the boundaries of an ozone nonattainment area (for reclassifications of an existing nonattainment area, the limit applies for the existing classification until the effective date of reclassification):

II.A.1.b.(i) For facilities located within an ozone nonattainment area which is classified as Marginal or Moderate:

Volatile Organic Compounds: 10.0 tons per year

II.A.1.b.(ii) For facilities located within an ozone nonattainment area which is classified as Serious or Severe:

Volatile Organic Compounds: 3.0 tons per year

II.A.2. For new or modified registrations deemed complete on or after the effective date of this permit issuance (Issuance 4), the maximum allowable emissions of nitrogen oxides (NO_x) and carbon monoxide (CO) from all hydrocarbon loadout and control of emissions from all hydrocarbon loadout under the GP07 registration that are owned and operated by the same person and co-located at the same stationary source must not exceed the requested annual emission limitations (tons per year) as listed on the general permit registration approval letter, or if an approval letter has not been issued, as certified by the owner or operator in the Air Pollutant Emission Notice (APEN) included with the general permit registration APEN (Regulation Number 3, Part B, Sections II.A.4. and II.A.7.)

II.B. Facility-Wide Emission Limitation Requirements

II.B.1. The owner or operator not subject to Conditions I.B. or I.C. or I.D. of this permit must track potential emissions from all insignificant activities at the facility on an annual basis to demonstrate compliance with the facility emission limitations indicated below. An inventory of each insignificant activity and associated emission calculations must be made available to the Division for inspection upon request. For the purposes of this condition, insignificant activities are defined as any activity or



equipment which emits any amount of a regulated pollutant but does not require an APEN or is permit exempt. Note that for reclassifications of an existing nonattainment area, the limit applies for the existing classification until the effective date of reclassification. (Regulation Number 3, Part B. Section III.E.)

- II.B.1.a. Facilities located in an area classified as attainment, marginal nonattainment, or moderate nonattainment for all pollutants, total potential point source emissions from the facility, including all permitted emissions and potential to emit from all insignificant activities, must be less than:

Volatile Organic Compounds (VOC):	100 tons per year
Nitrogen Oxides (NO _x):	100 tons per year
Carbon Monoxide (CO):	100 tons per year

- II.B.1.b. Facilities located in an area classified as serious nonattainment for ozone, total potential point source emissions from the facility, including all permitted emissions and potential to emit from all insignificant activities, must be less than:

Volatile Organic Compounds (VOC):	50 tons per year
Nitrogen Oxides (NO _x):	50 tons per year
Carbon Monoxide (CO):	100 tons per year

- II.B.1.c. Facilities located in an area classified as severe nonattainment for ozone, total potential point source emissions from the facility, including all permitted emissions and potential to emit from all insignificant activities, must be less than:

Volatile Organic Compounds (VOC):	25 tons per year
Nitrogen Oxides (NO _x):	25 tons per year
Carbon Monoxide (CO):	100 tons per year

II.B.2. Combined maximum allowable controlled emissions of hazardous air pollutant(s) (HAPs) from all equipment at the same stationary source must not exceed the following limitations: (Reference: Regulation Number 3, Part B, Section II.A.4.)

Each Individual HAP:	8.0 tons per year
Total of all HAPs:	20.0 tons per year

II.B.3. A control device may be used to comply with these emission limits.

II.C. General Operating Conditions

II.C.1. This source is subject to the odor requirements of Regulation Number 2.

II.C.2. The ten digit AIRS ID number assigned by the Division (e.g. 123/1234/001) must be marked on the subject equipment for ease of identification. The permit number (i.e. GP07) must be marked on equipment newly registered and deemed complete on or after the issuance date of Issuance 4 of this general permit (Reference: Regulation Number 3, Part B, Section III.E.)

II.C.3. The owner or operator must comply with opacity requirements in Regulation Number 1, Section II.A., as applicable per the most current version of Regulation Number 1.

II.C.4. If emissions are routed to a control device, the owner or operator must follow the Operating and Maintenance plan specified in Section IV. (Reference: Regulation Number 3, Part B, Section III.I.6.)

- II.C.5. This source's hydrocarbon liquid loading operations must be limited by the emission limits specified in this permit, and all other activities, operational parameters and numbers of equipment as stated in the registration.
(Reference: Regulation Number 3, Part B, Section II.A.4.)
- II.C.6. Hydrocarbon liquid loading to truck tanks must be conducted by submerged fill.
(Reference: Regulation Number 3, Part B, III.E)
- II.C.7. For sources not subject to Regulation Number 7, Part B., Section II.C.5., the owner or operator must follow loading procedures that minimize the leakage of VOCs to the atmosphere including, but not limited to (Reference: Regulation Number 3, Part B, III.E)
- II.C.7.a. Hoses, couplings, and valves must be maintained to prevent dripping, leaking, or other liquid or vapor loss during loading and unloading.
- II.C.7.b. All compartment hatches (including thief hatches) must be closed and latched at all times when loading operations are not active, except for periods of maintenance, gauging, or safety of personnel and equipment.
- II.C.7.c. The owner or operator must inspect loading equipment and operations onsite at the time of inspections to monitor compliance with Part II.C.7 (a) and (b) above. The inspections must occur at least monthly. Each inspection must be documented in a log available to the Division on request.
- II.C.8. All hydrocarbon liquid loading operations, regardless of size, must be designed, operated and maintained so as to minimize leakage of volatile organic compounds to the atmosphere to the maximum extent practicable. (Reference: Regulation Number 3, Part B, III.E)

II.D. Statewide Emissions Control Requirements for Storage Tank Hydrocarbon Liquids Loadout

II.D.1. Owners or operators of well production facilities, natural gas compressor stations, and natural gas processing plants with a hydrocarbon liquids loadout to transport vehicles throughput of greater than or equal to 5,000 barrels per year on a rolling 12-month basis must control emissions from the loadout of hydrocarbon liquids from controlled storage tanks to transport vehicles by using (a) submerged fill and (b) a vapor collection and return system and/or air pollution control equipment. Compliance with this section must be achieved in accordance with the following schedule: (Reference: Regulation Number 7, Part B, Section II.C.5.a.)

II.D.1.a. Facilities constructed or modified on or after May 1, 2020, must be in compliance by commencement of operation.

II.D.1.b. Facilities constructed before May 1, 2020, must be in compliance by May 1, 2021.

II.D.1.c. Facilities not subject to Regulation Number 7, Part B, Sections II.C.5.a.(i)(C) or II.C.5.a.(i)(D) that exceed the hydrocarbon liquids loadout to transport vehicles throughput of greater than or equal to 5,000 barrels per year on a rolling 12-month basis must control emissions from loadout upon exceeding the loadout threshold.

II.D.2. Owners or operators of class II disposal well facilities with VOC emissions from hydrocarbon liquids loadout to transport vehicles greater than or equal to two (2) tons uncontrolled actual emissions per year on a rolling 12-month basis must control emissions from the loadout of hydrocarbon liquids from storage tanks to transport vehicles by using (a) submerged fill and (b) a vapor collection and return system and/or air pollution control equipment. Compliance with this

section must be achieved in accordance with the following schedule:

(Reference: Regulation Number 7, Part B, Section II.C.5.a)

- II.D.2.a. Class II disposal well facilities constructed or modified on or after January 1, 2021, must be in compliance by commencement of operation.
- II.D.2.b. Class II disposal well facilities constructed before January 1, 2021, must be in compliance by May 1, 2021.
- II.D.2.c. Facilities not subject to Regulation Number 7, Part B, Sections II.C.5.a.(i)(C) or II.C.5.a.(i)(D) that exceed the hydrocarbon liquids loadout to transport vehicles emissions threshold of greater than or equal to two (2) tons uncontrolled actual VOC emissions per year on a rolling 12-month basis must control emissions from loadout within sixty (60) days of the first day of the month after which loadout emissions exceeded the loadout threshold.
- II.D.3. Storage tanks must operate without venting at all times during loadout. Compliance with this section must be achieved in accordance with the schedule set forth in Regulation Number 7, Part B, Section II.C.5.a.(ii).
- III. **Alternative Operating Scenario (AOS)**
 - III.A. Provided that there are no emission increase and the emission limits set forth in Section II.A. and Section II.B. are still met, the owner or operator may invoke an AOS for the following changes to an existing loading operation registered under the general permit without modifying the general permit registration:
 - Replacement of an existing control device by control equipment of the same make, model, and no changes to the configuration that might impact a dispersion analysis.

III.B. The owner or operator must record in a log the date and description of any change made under the provisions of this AOS. This log must be maintained contemporaneously with any changes made under the AOS (Reference: Regulation Number 3, Part A, Section IV.A.1.)

III.C. The following changes are not considered modifications. These changes should be reflected in any revised APEN required by Condition VIII.C.1.

- Removal of a well serviced by the loadout operation with no increase to permitted emissions rates and no changes to the configuration that might impact a dispersion analysis;
- Re-piping of an existing well with no increase to permitted emissions rates and no changes to the configuration that might impact a dispersion analysis;
- Routine equipment maintenance, repair and replacement, except as otherwise listed in Condition III.A., with no increase to permitted emissions rates and no changes to the configuration that might impact a dispersion analysis.

IV. Operating and Maintenance Plan

IV.A. To the maximum extent practicable, all condensate collection, storage, processing, and handling operations, regardless of size, must be designed, operated, and maintained so as to minimize emissions of volatile organic compounds to the atmosphere.

IV.B. Combustion devices used to control emissions authorized by this permit must be enclosed; have no visible emissions during normal operations, as defined under Regulation Number 7, Part B, Section II.A.45; and be designed so that an observer can, by means of visual observation from the outside of the combustion device, or by other convenient means approved by the Division, determine whether the

combustion device is operating properly. This combustion device must be equipped with an operational auto-igniter according to the schedule in Regulation Number 7, Part B, Section II.B.2.d. (Reference: Regulation Number 7, Part B, Sections II.B.2.b. and II.B.2.d., (effective 02/14/2024)).

IV.C. If a control device is used to comply with the emission limits in Section II.A. of this permit the following conditions must be met:

IV.C.1. Control devices must be adequately designed, and operated and maintained according to manufacturer specifications to achieve a control efficiency of at least 95% and to handle reasonably foreseeable fluctuations in emissions of VOCs.

IV.C.2. The owner or operator must commence monitoring the pilot light/auto-igniter and visible emissions observation and document the proper operation of the control device based on the monitoring frequency in Table 1.

Table 1: Monitoring Frequencies

Effective Date of Registration ¹	Classification	Permitted VOC Emissions	Monitoring Frequency
Prior to Issuance 4	Any	Any	Weekly

¹ The Effective Date of Registration is the date that the registration request was granted conditional certification per Condition VIII.F.1.



COLORADO

Air Pollution Control Division

Department of Public Health & Environment

Effective Date of Registration ¹	Classification	Permitted VOC Emissions	Monitoring Frequency
On or after Issuance 4	Attainment	Less than 80 TPY	Weekly
On or after Issuance 4	Attainment	Greater than or equal to 80 TPY	Daily
On or after Issuance 4	Marginal/Moderate Ozone Non-Attainment	Less than 80 TPY	Weekly
On or after Issuance 4	Marginal/Moderate Ozone Non-Attainment	Greater than or equal to 80 TPY	Daily
On or after Issuance 4	Serious Ozone Non-Attainment	Less than 40 TPY	Weekly
On or after Issuance 4	Serious Ozone Non-Attainment	Greater than or equal to 40 TPY	Daily
On or after Issuance 4	Severe Ozone Non-Attainment	Less than 15 TPY	Weekly



Effective Date of Registration ¹	Classification	Permitted VOC Emissions	Monitoring Frequency
On or after Issuance 4	Severe Ozone Non-Attainment	Greater than or equal to 15 TPY	Daily

Time intervals for monitoring proper operation of a control device may be shorter if required under Regulation Number 7, Part B, Section I or Section II. Indications of improper operation for a control device include, but are not limited to, absence of auto-igniter or pilot light, malfunction of electronic ignition, valves for piping of pilot gas or waste gas to the control device not being open and/or presence of smoke. A check box is suitable for recording proper operation. Improper operation of a control device must be further documented with a description of the problem and its resolution, the date range the control was inoperable, and the volume of liquid loaded during the downtime. Inspections can be done by either visible observation or other means approved by the Division. During control device downtime, emissions must be considered to be uncontrolled.

IV.C.3. For sources not subject to Regulation Number 7, Part B, Section II.C.5., the owner or operator of a facility at which vapor balancing is used to control emissions must:

IV.C.3.a. Install and operate the vapor collection and return equipment to collect vapors during loading of tank compartments of outbound transport trucks and return these vapors to the stationary source storage tanks.



- IV.C.3.b. Include devices to prevent the release of vapor from vapor recovery hoses not in use.
 - IV.C.3.c. Use operating procedures to ensure that hydrocarbon liquid cannot be transferred unless the vapor collection equipment is in use.
 - IV.C.3.d. Operate all recovery and disposal equipment at a back pressure less than the pressure relief valve setting of transport vehicles.
 - IV.C.3.e. Inspect thief hatch seals annually for integrity and replace as necessary. Thief hatch covers must be weighted and properly seated.
 - IV.C.3.f. Inspect pressure relief devices (PRD) annually for proper operation and replace as necessary. PRDs must be set to release at a pressure that will ensure flashing, working and breathing losses are routed to the control device under normal operating conditions.
 - IV.C.3.g. Document annual inspections of thief hatch seals and PRD with an indication of status, a description of any problems found, and their resolution.
- IV.D. Owners or operators that are subject to Regulation Number 7, Part B, Section II.C.5. must comply with loadout observations and operator training requirements in Regulation Number 7, Part B, Section II.C.5.a.(iv). Compliance with this section must be achieved in accordance with the schedule set forth in Regulation Number 7, Part B, Section II.C.5.a.(i).
- IV.E. Air pollution control equipment used to comply with Regulation Number 7, Part B, Section II.C.5. are subject to Regulation Number 7, Part B, Section II.B., including but not limited to visual inspections, performance testing, reporting, and

recordkeeping requirements. Compliance with this section must be achieved in accordance with the schedule set forth in Regulation Number 7, Part B, Section II.C.5.a.(i).

- IV.F. Owners or operators that are subject to Regulation Number 7, Part B, Section II.C.5. must comply with the requirements in Regulation Number 7, Part B, Section II.C.5.a.(iii). Compliance with this section must be achieved in accordance with the schedule set forth in Regulation Number 7, Part B, Section II.C.5.a(i).

V. Recordkeeping and Reporting

- V.A. Records must be maintained on-site or at a local field office with stationary source responsibility for Division review. Records may be kept in either electronic format or hard copy provided that they can be promptly supplied to the Division upon its request. All records must be retained for a period of five years.

- V.B. The following records must be maintained for this emission point covered under this general permit:

V.B.1. The current issuance of this general construction permit.

V.B.2. The most recently submitted APEN.

V.B.3. The general permit registration approval letter (once issued).

V.B.4. Records that clearly demonstrate compliance with the emission limits of this permit. This must include the most currently available loading throughput records necessary to calculate emissions in accordance with this Condition V.B.4 and documentation of all periods of control device downtime for sources where a control device is required to comply with the emission limits Section II.A. of this permit.

- For sources located at a true minor facility, compliance with the emission limits in Section II.A and Section II.B. must be



determined by calculating the annual emissions from each emission unit for the calendar year.

- For sources located at synthetic minor or major facilities, compliance with the emission limits in Section II.A and Section II.B. must be determined by recording the annual emissions from each emission unit on a rolling 12-month total. By the end of each month a new 12-month total is calculated based on the previous 12 months' data. During the first year of operation, compliance must be assumed providing that cumulative emissions from all months of operation do not exceed the emission limits in Section II.A.

V.B.5. Records required by Condition III.B (AOS), as applicable.

V.B.6. Owners or operators that are subject to Regulation Number 7, Part B, Section II.C.5. must retain records for at least two (2) years and make such records available to the Division upon request. Compliance with this section must be achieved in accordance with the schedule set forth in Regulation Number 7, Part B, Section II.C.5.a.(i).

V.B.7. On or before June 30th of each calendar year, the owner or operator of oil and natural gas operations and equipment at or upstream of a natural gas processing plant or class II disposal well facilities in Colorado must submit a single annual report that includes actual emissions and specified information in the Division-approved report format. The information included in the annual report must be in accordance with the general reporting requirements of Regulation Number 7, Part B, Section V.B. Each calendar year, owners or operators must maintain the information according to Regulation Number 7, Part B, Section V.C. for inclusion in the annual report. (Reference: Regulation Number 7, Part B, Section V).

VI. Additional Requirements for Sources located in an Ozone Non-Attainment Area

- VI.A. This Section VI only applies to facilities located in an Ozone Non-Attainment Area. (Reference: Regulation Number 7, Part B, Section I.A.1.)
- VI.B. The owner or operator may be subject to emission control, monitoring, and recordkeeping requirements contained in Regulation Number 7, Part B, Section I.C. and Section I.M.

VII. Monitoring Requirements for Facilities located in Disproportionately Impacted (DI) Communities

- VII.A. Owners or operators of new or modified sources located in Disproportionately Impacted Communities must submit a notification at the time of registration for a general permit or permits issued pursuant to Regulation Number 3, Part B, Section III.I. indicating the source will comply with the monitoring requirements outlined in Regulation Number 3, Part B, Section III.J., as applicable, by either:
- VII.A.1. Complying with source-specific monitoring pursuant to Section III.J.2. of Part B;
 - VII.A.2. Paying community monitoring fees pursuant to Section III.J.3. of Part B; or
 - VII.A.3. Complying with well production facility monitoring pursuant to Section III.J.4. of Part B.

Owners or operators must comply with the monitoring methodology selected on the general permit registration form.

VII.B. Owners or operators subject to VII.A.1 must submit a Division-approved source-specific monitoring plan as part of a complete registration request. (Regulation Number 3, Part B, III.E.)

VIII. General Permit Terms and Administration

VIII.A. A facility that is classified as a major source for Title V Operating Permit requirements and is operating under Condition I.A.4 or I.A.5. must submit a Title V permit application requesting to incorporate the terms of this general permit into a Title V Operating Permit. The due date for this application is one year from the date on which the facility becomes subject to Title V Operating Permit requirements.

VIII.B. In accordance with Colorado Regulation Number 3, Part C, Section V.C.5, some or all of the monitoring specified in this general permit will be incorporated as specific conditions in the source's Title V Operating Permit (if applicable). Additional monitoring not listed in this general permit may be included in the source's Operating Permit in order to satisfy the periodic monitoring requirements of Section V.C.5.b.

VIII.C. General Terms

VIII.C.1. A revised APEN must be filed: (Reference: Regulation Number 3, Part A, Section II.C.)

VIII.C.1.a. Annually by April 30th of the year following a significant increase in emissions as follows:

VIII.C.1.a.(i) For VOC, a change in actual emissions of five (5) tons per year or more, above the level reported on the last APEN; or

VIII.C.1.a.(ii) For volatile organic compounds and nitrogen oxides sources in ozone non-attainment areas, a change in annual actual

emissions of one ton per year or more or five percent, whichever is greater, above the level reported on the last APEN submitted to the Division; or

VIII.C.1.a.(iii) For any non-criteria reportable pollutant, if the emissions increase by 50% or five (5) tons per year, whichever is less, above the level reported on the last APEN.

VIII.C.1.b. Whenever there is a change in the owner or operator of any facility, process, or activity; or

VIII.C.1.c. As required by the alternative operating scenario allowed by Section III; or,

VIII.C.1.d. No later than 30 days before the existing APEN expires.

VIII.C.2. The requirements of Colorado Regulation Number 3, Part D must apply at such time that any stationary source or modification becomes a major stationary source or major modification solely by virtue of a relaxation in any enforceable limitation that was established after August 7, 1980, on the capacity of the source or modification to otherwise emit a pollutant such as a restriction on hours of operation (Colorado Regulation Number 3, Part D, Sections VI.B.4 and/or V.A.7.b).

VIII.C.3. Sources covered by this General Permit are subject to the Common Provisions Regulation Part II, Subpart E, Upset Conditions and Breakdowns. The owner or operator must notify the Division of any upset condition which causes a violation of any emission limit or limits stated in this permit as soon as possible, but no later than noon of the Division's next working day, followed by written notice to the Division explaining the cause of the occurrence and that proper action has been or is being taken to correct the conditions causing said violation and to prevent such excess emission in the future.

- VIII.C.4. This permit is granted subject to all rules and regulations of the Colorado Air Quality Control Commission and the Colorado Air Pollution Prevention And Control Act C.R.S., sections 25-7-101, et seq, to those general and specific terms and conditions included in this document.
- VIII.C.5. Unless specifically stated otherwise, the general and specific conditions contained in this permit have been determined by the Division to be necessary to assure compliance with the provisions of Section 25-7-114.5(7)(a), C.R.S.
- VIII.C.6. Each and every condition of this permit is a material part hereof and is not severable. Any challenge to or appeal of a condition herein by the permittee will constitute a rejection of the entire permit and upon such occurrence, this permit must be deemed denied ab initio.
- VIII.C.7. Section 25-7-114.7(2)(a), C.R.S. requires that all sources required to file an Air Pollution Emission Notice (APEN) must pay an annual fee to cover the costs of inspections and administration.
- VIII.C.8. Violation of the terms of a permit or of the provisions of the Colorado Air Pollution Prevention and Control Act or the regulations of the AQCC may result in administrative, civil or criminal enforcement actions under Sections 25-7-115 (enforcement), -121 (injunctions), -122 (civil penalties), -122.1 (criminal penalties), C.R.S.
- VIII.C.9. Registration under this permit is approved in reliance upon the accuracy and completeness of information supplied by the applicant and is conditioned upon operation of the source, in accordance with this information and with representations made by the applicant or applicant's agents. It is valid only for the equipment and operations or activity specifically identified on the general permit registration.

VIII.D. Registration Revision / Termination

- VIII.D.1. The Division may deny or revoke registration under the general permit under the circumstances specified in Regulation Number 3, Part B, Section III.I.3.c.
- VIII.D.2. A registration under this general permit may be reissued to a new owner or in a new company name by the Division as provided in Regulation Number 3, Part B, Section II.B. upon a request for transfer of ownership or company name change and the submittal of a revised APEN and the required fees.
- VIII.D.3. Registration under this general permit is voluntary. The owner or operator may withdraw or cancel a registration under this general permit at any time by notifying the Division in writing.

VIII.E. General Permit Revision / Termination

- VIII.E.1. This general permit remains in effect until revised or terminated by the Division in accordance with the provisions of Regulation Number 3.
- VIII.E.2. After public notice and comment as provided by Regulation Number 3, Part B, Section III.I.7., the Division may revise this general permit in order to add or delete requirements or limitations to the permit. This public notice shall be conducted in a manner consistent with the provisions of Regulation Number 3, Part B, Section III.C.4.
- VIII.E.3. If a revised general permit is issued by the Division, any existing registration to use the general permit will be automatically converted to a registration to use the revised general permit, and the owner or operator is subject to requirements of the revised general permit. Persons not wishing to continue coverage under the revised general permit shall have the option of applying for an individual permit as required by Regulation Number 3, Part B.

VIII.E.4. If the Division terminates this general permit, it will provide written notice to affected registrants prior to the termination of the general permit. The notice will advise registrants that they must apply for an individual permit as required by Regulation Number 3, Part B.

VIII.E.5. The Division may require any source authorized by a general construction permit to apply for and obtain an individual permit if circumstances have changed since the time of the original general permit application so that the source is no longer appropriately controlled and/or permitted under the general construction permit. (Reference: Regulation Number 3, Part B, Section III.I.3.c.(i)(B))

VIII.F. General Permit Registration Approval Process

VIII.F.1. Conditional certification of a registration under this general permit is effective from the date the registration is deemed complete as indicated in Condition

VIII.F.2. A complete registration request consists of all General Permit application materials required by the Division and associated fees. The owner or operator may commence construction and operation of the hydrocarbon liquid loading as represented in the registration once the registration is deemed complete. In the event the hydrocarbon liquid loading operation(s) does not qualify for registration under the general permit the owner or operator accepts the liability of commencing these activities.

VIII.F.2. The Division will determine completeness of the General Permit registration request within sixty (60) days of the date of receipt of the request and provide written notification to the applicant. If the applicant does not receive notification of a completeness determination from the Division within sixty (60) days, the General Permit registration request will be deemed complete for the purpose of Conditions VIII.F.1. and VIII.F.2.

VIII.F.3. The Division has ninety (90) calendar days from the date the Division receives a complete General Permit registration request to provide the applicant with a written approval or denial of the registration.

Permit History

Issuance	Date	Description
Issuance 1	17 April 2014	Initial issuance
Issuance 2	24 January 2020	Revised to address the ozone non-attainment area re-classification from moderate to serious
Issuance 3	3 November 2022	Revised to address the 8-hour Ozone Control Area re-classification from serious to severe for existing registrations
Issuance 4	This Issuance	Revised to address: • Revised to address Northern Weld County Area re-classification from moderate to serious for existing registrations, • Changes to the structure of AQCC Regulation Number 7; and • New emissions control, reporting, recordkeeping, performance testing, training, operating, and monitoring



Issuance	Date	Description
		requirements from AQCC Regulation Number 7. • Modification to the AOS provisions • Updates to Operating and Maintenance requirements • Addition of facility-wide limits for other criteria pollutants